Compliance Annotation

Framework: GDPR | **Compliance Level:** Fully Compliant

StreamVibe Europe B.V.

Finding 1: [COMPLIANT] Data Controller & DPO Identification (Art. 13(1)(a-b))

The policy provides the full legal name, registered Dutch address, and specific contact details for the Data Protection Officer, including both a dedicated email address and a telephone number, ensuring high accessibility for data subjects.

References: GDPR Art. 13(1)(a), Art. 37, Art. 38, Art. 39

Finding 2: [COMPLIANT] Specification of Processing Purposes & Legal Bases (Art. 6(1))

Each distinct processing activity—ranging from service delivery and payment processing to safety and fraud prevention—is explicitly mapped to a specific legal basis (Contract, Legal Obligation, Consent, or Legitimate Interest) as required by the principle of lawfulness.

References: GDPR Art. 6(1)(a), Art. 6(1)(b), Art. 6(1)(c), Art. 6(1)(f), Art. 13(1)(c)

Finding 3: [COMPLIANT] Inventory of Data Categories (Art. 13(1))

The policy clearly delineates between data provided directly by the user (Account and Payment data), data collected automatically (Usage and Technical data), and data obtained from third-party sources (Social logins and IP mapping), satisfying the transparency requirement for data origin.

References: GDPR Art. 13(1), Art. 14

Finding 4: [COMPLIANT] Comprehensive User Rights & Modalities (Art. 12-22)

All eight primary GDPR rights are enumerated with specific instructions for execution (e.g., account settings for rectification, DPO contact for access). The policy correctly notes the right to withdraw consent without affecting prior lawfulness.

References: GDPR Art. 12, Art. 13(2)(b), Art. 15, Art. 16, Art. 17, Art. 18, Art. 19, Art. 20, Art. 21, Art. 7(3)

Finding 5: [COMPLIANT] Granular Data Retention Schedules (Art. 13(2)(a))

Retention periods are defined by category rather than a blanket statement: 90 days post-closure for account data, 7 years for payment records (aligned with tax law), and 3 years for marketing consent. This adheres strictly to the storage limitation principle.

References: GDPR Art. 5(1)(e), Art. 13(2)(a)

Finding 6: [COMPLIANT] International Transfer Safeguards (Art. 44-46)

The policy identifies that data may leave the EEA and specifies the legal mechanisms used (Adequacy Decisions and Standard Contractual Clauses). It further notes that SCC copies are available upon request and transfers are supplemented by encryption.

References: GDPR Art. 44, Art. 45, Art. 46(2)(c)

Finding 7: [COMPLIANT] Processor Oversight & Third-Party Sharing (Art. 28)

Specific categories of recipients (Hosting, Payment, Email, Analytics) are named alongside example vendors. Crucially, the policy confirms that all third-party processors are bound by Art. 28 Data Processing Agreements (DPAs).

References: GDPR Art. 13(1)(e), Art. 28

Finding 8: [COMPLIANT] Protection of Minors (Art. 8)

The policy sets the age of consent at 16, aligning with the default GDPR standard, and outlines clear procedures for the deletion of data if unauthorized collection from a child is discovered.

References: GDPR Art. 8, Art. 13

Finding 9: [COMPLIANT] Technical & Organizational Security Measures (Art. 32)

Beyond generalities, the policy lists specific security controls: AES-256 encryption at rest, TLS 1.3 in transit, role-based access controls (RBAC), and regular penetration testing. It also commits to the 72-hour breach notification window.

References: GDPR Art. 32, Art. 33, Art. 34

Finding 10: [COMPLIANT] Automated Decision-Making & Profiling (Art. 22)

The policy transparently discloses the use of algorithmic profiling for recommendations but clarifies that such processing lacks "legal or similarly significant effects," thus remaining outside the restrictive scope of Art. 22(1) while providing opt-out controls.

References: GDPR Art. 13(2)(f), Art. 22

Finding 11: [COMPLIANT] Policy Transparency & Change Management

StreamVibe commits to a 30-day notice period for material changes via multiple channels (email and in-app) and maintains a public version history/changelog, exceeding standard transparency requirements.

References: GDPR Art. 12, Art. 13, Recital 39